

3678/2012 on 11 February, 2014

Author: Asim Kumar Ray

Bench: Asim Kumar Ray

1-02-14 AD C.O. 3678 of 2012 With C.O. 457 of 2013 Mr. Santanu Das.

... for the petitioner in C.O. 3678/12 and for the opposite party in C.O. 457/13.

Mr. Gunjan Saha.

... for the petitioner in C.O. 457/13 and for the opposite party in C.O. 3678/12.

The revisional application being C.O. 3678 of 2012 is filed by the husband and the revisional application being C.O. 457 of 2013 is filed by the wife. Both the revisional applications are in connection with MAT Suit No. 200 of 2011. The same relates to alimony pendente lite of the wife. Both the applications are taken up together for disposal with this common order.

Both the applications are directed against the order dated 21st August, 2012 passed in MAT Suit No. 200 of 2011 by learned Additional District Judge, 5th Court, Barasat, 24-Parganas (North), whereby an application under Section 24 of the Hindu Marriage Act filed by the wife praying for alimony pendente lite was disposed of directing the husband to pay a sum of Rs. 10,000/- per month towards alimony pendente lite of the wife from the date of filing the application, i.e. from 06-07-2012. Being aggrieved by the said order, both sides have come before the court. The husband by filing the revisional application prayed for interference in the order impugned for setting it aside. On the contrary, the wife has prayed for enhancement of the alimony pendente lite.

MAT Suit No. 200 of 2011 was initiated by the wife seeking dissolution of marriage. The husband entered appearance and is contesting the matter. During pendency of the Matrimonial Suit, the wife took out an application under Section 24 of the Hindu Marriage Act and prayed for alimony pendente lite. The court passed the impugned order in favour of the wife. In the backdrop, the applications are before the court.

Learned Advocate appearing for the husband has contended that the husband is a poor Contractor of BSNL. He used to earn Rs. 14,000/- to 16,000/- per month and now his income has come down to Rs. 5000/- per month. The husband has filed the Income Tax Return to show his income to the tune of Rs. 14,000/- to 16,000/- per month. He further submits that the wife has her own income. She collects Rs. 10,000/- per month towards the rent from her tenant. The order impugned may be interfered with and set aside; alternatively the alimony pendente lite may be reduced.

Learned Advocate appearing for the wife has contended that the husband has a huge income. The alimony pendente lite awarded by the learned court below does not commensurate with the lifestyle

of the husband and wife. It may be enhanced.

It is an admitted fact that the parties are husband and wife. There is no specific document to show wife's income. There is no document to show that she is collecting Rs. 10,000/- per month from any person, her alleged tenant. On the contrary, it appears from the record that the husband has filed his Income Tax return showing his income Rs. 14,000/- to 16,000/- per month. It is also on record that he is a Contractor and enlisted along with other Contractors for the work of BSNL. There is no paper on record to show the life-style/status of the parties. Considering the price of essential commodities of the days, I think that to have four square meals etc per day to maintain a life Rs. 8000/- per month will be sufficient.

Considering the aforesaid facts, the order impugned is modified to the extent by giving a direction to the husband to pay a sum of Rs. 8000/- per month to the wife towards alimony pendente lite month by month from the date of the application, i.e. from 06-07-2012. The wife may take appropriate step for realisation of the arrears amount, if any.

With this observation, both the applications stand disposed of. Matrimonial Suit be expedited.

Urgent xerox certified copy of this order, if applied for, be given to the parties as expeditiously as possible.

(Asim Kumar Ray, J.)